Aircraft Rental Agreement & Liability Waiver

HUTZELL AVIATION LLC • Piper PA-28-140 • N8491F • Barrow County Airport (KWDR), Winder, Georgia

IMPORTANT — READ BEFORE SIGNING

This Agreement includes (1) a release of claims for injury or death, INCLUDING CLAIMS ALLEGING THE ORDINARY NEGLIGENCE OF A RELEASED PARTY, (2) potential financial responsibility for aircraft damage WITHOUT A PRESET DOLLAR CAP, and (3) limited third-party indemnification. Carefully review all terms and the coverage requirements before signing.

1. Parties, aircraft, and scope

This Aircraft Rental Agreement, Assumption of Risk, Release of Liability, and Indemnification Agreement (the "Agreement") is between Hutzell Aviation LLC, a Georgia limited liability company (the "Company"), and the undersigned renter pilot ("Renter"). It concerns the 1974 Piper PA-28-140, registration N8491F (the "Aircraft"), and approved reservations, checkouts, ground operations, and rental flights unless superseded by a subsequently signed agreement.

For this Agreement, a "signed flight record" means the Company-approved rental reservation or checkout record signed or electronically acknowledged by the Company and Renter that identifies the Aircraft, applicable rental or flight, designated PIC, and, if different from the Company, the legal owner and any lessor. The Company must keep this record with the rental documents.

The Company provides aircraft access to qualified and approved renters, not a sale of passenger seats or passenger air transportation. Approved Renters may bring nonpaying passengers on an otherwise lawful private flight, if permitted by FAA rules, the applicable insurance policy, and Company restrictions. Renter may not engage in commercial operations, carriage for compensation or hire, unauthorized flight instruction, or any unapproved use.

Before boarding for EACH separately departing flight leg, every passenger aged 18 or older must sign the Company's separate Passenger Assumption of Risk and Liability Release covering that leg. For each passenger under 18, a verified parent/legal guardian must complete the Company's separate Minor Passenger Consent and the Company must approve boarding. Renter shall give the Company the signed forms before departure, whether completed on paper or through an approved electronic process. No unsigned passenger may board.

2. Eligibility, approval, and required documents

Before each flight, Renter represents and agrees that Renter: (a) is at least 18, unless an independently approved lawful minor-renter procedure applies; (b) holds at least a Private Pilot certificate and all ratings, endorsements, flight review, recency of experience, and qualifications legally required for the proposed flight; (c) has at least 75 hours of TOTAL logged flight time in all aircraft, NOT 75 hours of PIC time, unless the Company approves a written exception permitted by law and the insurer; (d) holds a valid medical certificate or legally qualifies under BasicMed, as applicable; (e) maintains the insurance required under Section 8; and (f) has truthfully supplied requested pilot and loss-history information.

Renter must obtain Company approval and successfully complete an initial Aircraft checkout/check flight with a Company-authorized instructor or checkout pilot before solo rental. There is NO automatic periodic or annual checkout requirement under this Agreement. However, the Company may require another checkout before approving a later flight after prolonged inactivity, a change in qualifications, an incident, a material proficiency concern, or a written policy communicated before booking. The actual PIC of a checkout flight must be designated before departure; this Agreement does not assign PIC duties to someone who is not acting as PIC.

Renter shall notify the Company BEFORE the next reservation or flight of any certificate, rating, medical/BasicMed eligibility, flight review, currency, endorsement, operating restriction, insurance coverage, cancellation, claim, or other material qualification change, and shall immediately report any insurance lapse. The Company may suspend or withdraw approval for legitimate safety, regulatory, operational, or insurance reasons.

3. Operational duties and aircraft care

Whenever Renter serves as PIC, Renter has final operational authority and must comply with FAA rules, Aircraft operating limitations, required checklists, airworthiness determinations, weather and performance planning, weight and balance, required fuel reserves, and safe ground handling. Before each departure, Renter shall personally complete the applicable preflight inspection, confirm fuel quantity and grade, inspect the Aircraft and surrounding area for visible damage or discrepancies, and not depart with an unresolved airworthiness or safety concern. Renter may delay, divert, or cancel for safety without an additional penalty other than previously disclosed charges for services actually provided.

Before starting the engine, Renter shall report discovered damage or discrepancies to the Company, document them as directed (including photographs when safe and practical), and obtain a Company determination when needed. On return, Renter shall promptly report new damage, hard landings, mechanical concerns, or missing equipment, even if an incident does not appear to affect flightworthiness. The Company remains responsible for legally assigned owner/operator inspection and maintenance duties as stated in Section 11.

Renter shall not permit an unapproved person to manipulate the flight controls, use an unapproved pilot, sublease or lend the Aircraft, operate from a grass/unpaved strip, conduct aerobatics or intentional spins, or violate Company policies or insurance restrictions. Renter shall return the Aircraft to KWDR unless otherwise approved in writing, correctly secure and protect it using authorized procedures, remove ALL trash, and refrain from performing or authorizing repairs unless lawfully allowed and approved by the Company or necessary to respond to an immediate safety emergency.

Fuel and return procedure: Renter must depart with enough approved-grade fuel for the planned flight and all legally required reserves; fuel shall be purchased only at appropriate aviation-fuel facilities. Unless the Company gives a different written fueling arrangement at booking, return the Aircraft with at least the fuel quantity present at checkout; report fuel purchases and provide receipts for any Company-approved reimbursement. If unable to return on time for weather, mechanical, safety, or other reasons, notify the Company at (404) 401-0041 as soon as safely practicable, provide the Aircraft location and expected return, and obtain instructions. Do not compromise flight safety to meet a return time. Any late charge must have been disclosed and accepted in the reservation terms; an unplanned delay alone does not authorize an undisclosed fee.

Company policies include a one-hour daily minimum, a minimum 45-minute reservation buffer, advance approval for overnight rentals at an increased rate, a $50 no-show fee, and a $50 charge for trash left in the Aircraft or cleaning required after return. The agreed rental rates and other charges must have been provided and accepted at booking. Material changes to this Agreement require separate consent.

4. Acknowledgment and assumption of aviation risks

RENTER UNDERSTANDS THAT FLIGHT AND AIRCRAFT GROUND OPERATIONS INVOLVE INHERENT, SOMETIMES UNPREDICTABLE RISKS, INCLUDING SERIOUS INJURY, DEATH, AND PROPERTY DAMAGE. These include takeoff/landing accidents, collisions, loss of control, turbulence, weather, bird strikes, engine/avionics failures, fuel-related problems, ramp hazards, and actions or omissions of pilots and other people.

Renter knowingly and voluntarily assumes inherent aviation risks and risks arising from Renter’s own acts and decisions. This acknowledgment does not excuse any Released Party from a legally nonwaivable duty.

5. RELEASE OF LIABILITY FOR RENTER’S OWN CLAIMS — READ CAREFULLY

TO THE FULLEST EXTENT PERMITTED BY GEORGIA LAW, RENTER RELEASES HUTZELL AVIATION LLC; ITS MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, AGENTS, AUTHORIZED REPRESENTATIVES, AND SUCCESSORS; THE AIRCRAFT'S LEGAL OWNER AND LESSOR IDENTIFIED IN THE SIGNED FLIGHT RECORD; AND THE COMPANY-APPROVED PILOT IN COMMAND IDENTIFIED IN THAT RECORD, EACH ONLY FOR CONDUCT CONNECTED WITH THE IDENTIFIED RENTAL OR FLIGHT (TOGETHER, THE “RELEASED PARTIES”) FROM CLAIMS BROUGHT BY RENTER OR RENTER’S ESTATE FOR RENTER’S BODILY INJURY, DEATH, OR LOSS OF PERSONAL PROPERTY ARISING FROM RENTAL, CHECKOUT, GROUND OPERATIONS, OR FLIGHT OF THE AIRCRAFT, INCLUDING CLAIMS ALLEGING THE ORDINARY NEGLIGENCE OF A RELEASED PARTY. RENTER DOES NOT RELEASE HIMSELF OR HERSELF; AN INDIVIDUAL SERVING AS RENTER/PIC IS NOT RELEASED BY HIS OR HER OWN SIGNATURE.

THIS RELEASE DOES NOT APPLY TO GROSS NEGLIGENCE, WILLFUL OR WANTON MISCONDUCT, INTENTIONAL WRONGDOING, OR LIABILITY THAT CANNOT LEGALLY BE RELEASED. It does not purport to eliminate any independently held claim of a non-signing third party.

6. Responsibility for aircraft loss or damage

Renter is responsible for reasonable, documented physical loss of or damage to the Aircraft, equipment, avionics, keys, or accessories only to the extent legally attributable to (a) Renter's negligent, reckless, or intentional conduct; (b) Renter's breach of applicable rules or this Agreement; (c) improper ground handling, parking, securing, or fueling while under Renter's control; or (d) conduct of a passenger or person permitted by Renter, to the extent legally attributable to Renter.

Recoverable amounts may include reasonable repair or replacement costs, associated reasonable recovery/transportation costs, and applicable insurance deductibles, but only to the extent of actual compensable loss not covered by insurance or another responsible party. For a total loss, credits for insurance proceeds, salvage, and other recoveries will prevent double recovery. THIS SECTION HAS NO FIXED DOLLAR LIMIT OR MAXIMUM DEDUCTIBLE; RENTER'S POTENTIAL EXPOSURE MAY EXCEED THE LIMITS OF RENTER'S INSURANCE, BUT MAY NOT EXCEED THE NET LEGALLY RECOVERABLE LOSS. Any agreed fixed maximum must be documented in a signed amendment before rental.

Renter is not responsible solely because damage occurs during a rental if it arises from ordinary wear, a documented preexisting condition, a latent defect not caused or aggravated by Renter, or the Company's own negligent or legally nontransferable conduct, except to the extent Renter separately contributed. The parties shall preserve evidence and reasonably cooperate in determining cause.

7. Third-party claims; limited indemnification

To the fullest extent permitted by applicable law and consistent with applicable policy terms, Renter will defend, indemnify, and hold harmless the Released Parties against reasonable third-party claims, damages, judgments, settlements, and documented defense costs arising to the extent from Renter's negligent or wrongful operation, unauthorized use, breach, or acts for which Renter is legally responsible. This does not transfer liability for a Released Party's independent negligence or intentional or grossly negligent conduct. This contractual promise DOES NOT guarantee that any insurer will fund defense or indemnity; coverage and the allocation of deductibles must be confirmed by the insurer before use.

Renter shall give prompt written notice of claims, cooperate with insurers, honor policy notice and consent-to-settle requirements, and not settle a claim on another person's behalf without that person's written consent. The Company will not require action that would directly violate the conditions of an applicable insurance policy.

8. Mandatory renter insurance; subrogation

Before any rental and throughout each flight, Renter must maintain aviation non-owned/renter insurance acceptable to the Company, including: (a) third-party bodily injury/property damage liability of at least $[BROKER-APPROVED AMOUNT] per occurrence; (b) passenger bodily injury liability including an applicable per-passenger sublimit of at least $[BROKER-APPROVED AMOUNT OR "NO SEPARATE SUBLIMIT"]; and (c) non-owned Aircraft physical-damage liability of at least $[BROKER-APPROVED AMOUNT]. THESE THREE BLANKS MUST BE COMPLETED AND CONFIRMED IN WRITING BY THE COMPANY AND ITS INSURER/BROKER BEFORE THIS AGREEMENT IS OFFERED FOR SIGNATURE.

Renter shall deliver proof of the actual issued policy, including the passenger-coverage provisions and any applicable exclusions. The Company, owner, and/or lessor shall be named as additional insureds only if required by the Company and permitted by the policy, using the insurer's actual endorsement rather than a certificate alone. Company insurance protects the Company and does not automatically make Renter an insured. Subrogation may apply unless waived in writing by the appropriate insurer. Any insurance proceeds received for a loss will be credited to prevent double recovery.

Before approval, the Company must obtain written broker/insurer confirmation of approved renter and checkout pilots, rental/passenger use of N8491F, per-occurrence and per-passenger limits, hull/non-owned damage limits, additional-insured endorsements, deductibles, indemnity/defense requirements, and any subrogation waiver. Neither party promises coverage beyond the issued policy terms.

9. Damage, emergency, and incident reporting

In the event of an emergency, Renter must first take reasonable steps to protect life, obtain necessary emergency assistance (call 911 where appropriate), and follow PIC emergency procedures. As soon as safely practicable, notify the Company's incident-reporting contact at (404) 401-0041. Report every accident, propeller strike, hard landing, runway excursion, ground contact, injury, suspected damage, or mechanical abnormality, even without visible damage. Renter must also make any required FAA/NTSB or other governmental notification within applicable time limits. Never conceal damage, continue unsafe operation, or return a damaged Aircraft to service without authorization.

Renter shall promptly provide accurate event details and available photographs, witness information, and aircraft records, and cooperate with inspection and insurance processes. Renter may not admit liability on the Company's behalf or arrange nonemergency repairs without written approval. If the Company contact is unavailable, leave a time-stamped message and follow any insurer, emergency-service, or reporting obligations without delay.

10. Additional charges and disputes; no loss-of-use fee

No separate contractual fee for aircraft downtime, lost rental revenue, or loss of use is imposed under this Agreement. Aircraft physical damage and associated recoverable costs are governed by Section 6.

Other charges must be part of disclosed and accepted rental terms and comply with applicable law. Renter may dispute charges in writing, and the Company will provide a reasonable itemization of any aircraft-damage charges.

11. No waiver of nontransferable obligations

Nothing in this Agreement transfers to Renter any maintenance, inspection, airworthiness, or other owner/operator duty that law imposes on the Company, or diminishes the responsibilities legally imposed on the designated PIC. Checkout or rental approval does not guarantee flight safety or excuse a party from exercising legally required care.

12. Contract terms and electronic signature

Georgia law governs this Agreement subject to any mandatory legal requirements. Disputes shall be brought in a court of competent jurisdiction in Georgia unless applicable law requires otherwise. An unenforceable provision will be narrowed, if allowed, or severed without invalidating the rest. This Agreement, the accepted reservation rates, and policies actually furnished to Renter constitute the parties' agreement on these subjects; this Agreement controls express allocation of risk if a general policy conflicts.

A written or electronic signature signifies that Renter received and reviewed the complete Agreement, had the opportunity to ask questions, and intends to be legally bound. For an electronic signature, the Company shall document affirmative consent, identify the signer, preserve the final document and signed date/time with an audit record, and provide a copy. For a paper signature, the Company shall retain the signed original or scanned copy with the rental record. Records must be access-controlled and maintained under the Company's attorney/insurer-approved retention policy, with holds for pending claims. This Agreement remains effective for approved rentals until terminated in writing or superseded; existing liabilities survive termination.

SIGNATURES AND ACKNOWLEDGMENTS

By signing, I separately acknowledge Section 5's ordinary-negligence release, Section 6's potentially uncapped aircraft-damage responsibility, the Section 7 indemnity provision, and the mandatory insurance provisions in Section 8.

Separate acknowledgment of Section 5 release — Renter initials _____

Renter legal name _____

Renter email _____

Renter phone _____

FAA pilot certificate no. (last four digits only) _____

Renter signature _____

Renter signature date / time _____

Company approval representative _____

Company approval date / time _____